



CHAPTER 2

An Act to increase the duties of customs and excise chargeable on hydrocarbon oils, petrol substitutes, and spirits used for making power methylated spirits and, in connection therewith, to enable certain fares to be increased.
[20th December, 1956]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, have freely and voluntarily resolved to give and grant unto Your Majesty the increased duties hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from six o'clock in the evening of the fourth day of December, nineteen hundred and fifty-six, the rate of the customs duty chargeable under section two of the Finance Act, 1928, on hydrocarbon oils shall be three shillings and sixpence a gallon (instead of two shillings and sixpence a gallon as provided by section one of the Finance Act, 1952), and any Act or order which fixes by reference to the rate of that duty the rate of the excise duty on hydrocarbon oils, on petrol substitutes or on spirits used in making power methylated spirits, or the rate of any rebate from the customs or excise duty on hydrocarbon oils, shall have and be deemed to have had effect accordingly: Increase of duties.
18 & 19 Geo. 5. c. 17.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 33.

Provided that, if it appears to the Treasury expedient having regard to the circumstances giving rise to the present increase in the customs duty on hydrocarbon oils and to any change of

circumstances, the Treasury may by order made by statutory instrument direct that the rate of that duty shall again be two shillings and sixpence a gallon, and on the coming into force of any such order the rate of that duty and the other rates above-mentioned shall be reduced accordingly.

(2) If no order is made by the Treasury under this section so as to come into force at or before the expiration of one month beginning with the first day after the passing of this Act on which no petrol-rationing order is in force, this Act shall have effect as if the Treasury had made an order under this section to come into force at the expiration of that month.

In this subsection "petrol-rationing order" means an order made under Regulation 55 of the Defence (General) Regulations, 1939, restricting the supply, acquisition, use or consumption of any goods chargeable with the customs or excise duty on hydrocarbon oils.

Consequential
provision
for increase in
bus fares &c.
20 & 21 Geo.
5. c. 43.

2.—(1) Subject to the following provisions of this section, the holder of any road service licence under section seventy-two of the Road Traffic Act, 1930, may, with a view to off-setting the increase in duties under this Act, charge for the carriage of passengers in public service vehicles used under the licence fares in excess of those permitted by conditions attached to the licence (and may do so notwithstanding that the licence is granted or the relevant conditions are attached or varied after the passing of this Act), but shall not be entitled to increase fares beyond those permitted as aforesaid in any way which, according to the best of his judgment, will increase his aggregate gross receipts from passenger fares on public service vehicles used by him under road service licences by more than the appropriate fraction of what they would have been with the fares so permitted.

10 & 11 Geo.
6. c. 49.

(2) Subsection (1) of this section shall not apply in relation to fares chargeable on services provided by the London Transport Executive; but, subject to the following provisions of this section, the fares chargeable for the carriage of passengers on any (road or rail) services so provided may, with a view to off-setting the increase in duties under this Act, be increased beyond the amounts permitted by any charges scheme under Part V of the Transport Act, 1947, or, as the case may be, by conditions attached to any road service licence under section seventy-two of the Road Traffic Act, 1930 (and may be so increased notwithstanding that the scheme is made or varied, or the licence is granted or the relevant conditions attached or varied, after the passing of this Act), but shall not be increased beyond the fares permitted as aforesaid in any way which, according to the best of the judgment of the British Transport Commission, will increase the aggregate gross receipts from passenger fares on services provided by the Executive

(exclusive of services provided by contract carriages) by more than the appropriate fraction of what, with the fares so permitted, the gross receipts would have been from passenger fares on stage and express carriages operated by the Executive.

(3) The appropriate fraction for the purposes of this section is one-twelfth, except that it shall be one-eighth for the purposes of subsection (1) in its application to any holder of a road service licence who is the owner (within the meaning of the Road Traffic Act, 1930)—

(a) where the services operated by him under road service licences are certified by a chairman of traffic commissioners or by the commissioner for the Metropolitan traffic area to be substantially rural services, of not more than fifty public service vehicles; or

(b) in any other case, of not more than five public service vehicles.

(4) The rights conferred by the foregoing provisions of this section shall come to an end with the day on which an order of the Treasury under section one of this Act comes into force; but any fares then chargeable by virtue of those provisions may continue to be charged till the end of the following fortnight or such longer period as, for all or any of those fares, may for special reasons be allowed by the traffic commissioners who granted the relevant road service licence or, in so far as the fares fall to be determined by a charges scheme under Part V of the Transport Act, 1947, be allowed by the Transport Tribunal.

The procedure in relation to an application to the Transport Tribunal under this subsection shall be such as the Tribunal think fit, and in particular the Tribunal may deal with the application without a public sitting.

(5) Any increase of fares under this section shall be disregarded in determining whether or not conditions attached to a road service licence are or have been complied with or a vehicle is or has been used in accordance with the provisions of such a licence.

3.—(1) Subject to the following provisions of this section, where in any part of the United Kingdom the charges payable for hackney carriages are fixed by byelaws, the charges so payable may, with a view to off-setting the increase in duties under this Act, be increased beyond those permitted by the byelaws by such amounts (not exceeding in total sixpence for any one journey) as may from time to time be authorised by resolution of the authority having power to vary the byelaws; and any additional charge may be recovered in the same way as the fare allowed by the byelaws.

Consequential provisions for increase in taxi fares.

(2) A copy of any resolution giving, varying or revoking authority to increase charges under this section shall be deposited at the offices of the authority by whom the resolution is passed, and shall at all reasonable hours be open to public inspection without payment.

(3) Any power to increase charges under this section shall come to an end at the expiration of a fortnight after the day on which an order of the Treasury under section one of this Act comes into force.

(4) Any increase of charges under this section shall be disregarded in determining whether or not any byelaws relating to hackney carriages are or have been complied with or a vehicle is or has been used in accordance with such byelaws.

Short title.

4. This Act may be cited as the Hydrocarbon Oil Duties (Temporary Increase) Act, 1956.

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CHAPTER 3

An Act to increase the borrowing powers of the British Overseas Airways Corporation and the British European Airways Corporation; and for purposes connected with the matter aforesaid.

[20th December, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The limit imposed by section twelve of the Air Corporations Act, 1949 (hereinafter referred to as “the principal Act”), as amended by section one of the Air Corporations Act, 1953, on the amount outstanding at any time of money borrowed by the British Overseas Airways Corporation (hereinafter referred to as “the overseas corporation”) or the British European Airways Corporation shall be raised—

Increase of borrowing powers of air corporations. 12, 13 & 14 Geo. 6. c. 91. 2 & 3 Eliz. 2. c. 7.

- (a) as respects money borrowed by the overseas corporation, from eighty million pounds to one hundred and sixty million pounds;
- (b) as respects money borrowed by the British European Airways Corporation, from thirty-five million pounds to sixty million pounds.

(2) The overseas corporation may, with the consent of the Treasury, borrow from the International Bank for Reconstruction and Development or the Export-Import Bank of Washington, or partly from one of the said banks and partly from the other, on such terms as may be agreed between the corporation and the bank in question, any sums required by the corporation for the purpose of buying aircraft manufactured in the United States of America and any spare part or equipment required for incorporation in or use in connection with such aircraft: